JOHN TENDAYI ENOCK MAPONDERA
and
SUSAN CHIPO MAPONDERA
versus
PAUL GARUFU
and
LEONARD T RUPANGO

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 20 March 2025 & 22 April 2025

Opposed Application-Chamber Application for Contempt

B Makururu, for the applicants
T Sengwayo, for the respondents

MUSITHU J: This matter came before me as a Chamber Application for Contempt of Court in terms of r 79 of the High Court Rules, 2021 (the Rules). The applicants sought an order couched in the following terms:

> "IT IS ORDERED THAT
> 1. The respondents be and are hereby found to be in contempt of the order of this Honourable Court dated the 31 January 2023 in HC4302/22
> 2. The respondents are hereby sentenced to 60 days imprisonment which is wholly suspended on condition that they comply with paragraphs 2 of HC 4302/22 forthwith.
> 3. In the event that the respondent fails to comply forthwith with paragraphs 2 of HC 4302/22, the applicants are entitled to lodge a complaint on oath with the Registrar of this Court who shall upon receipt of such complaint issue a warrant of committal against the respondents for them to serve the suspended sentence.
> 4. The respondents shall pay the costs of this application on a legal practitioner to client scale."

After reading documents filed of record and hearing submissions from counsel, I granted the order above in an *ex-tempore* judgment. In a letter dated 20 March 2025 and received by the Registrar on 24 March 2025, the respondents' legal practitioner of record requested written reasons for the judgment. These are they.

Background

The first applicant's founding affidavit was deposed to by the first applicant himself, John Enock Tendayi Mapondera. The second applicant filed a supporting affidavit associating herself with the averments made in the first applicant's founding affidavit. The applicants are

holders of a registered 99-year lease in respect of Plot 2 Strathlone Farm situated in the District of Goromonzi in Mashonaland East Province measuring 429.0266 in extent (hereinafter referred to as the farm). On 31 January 2023, the applicants were granted an order in their favour per MANGOTA J for the eviction of the respondents and all those claiming occupation through them from the farm. The respondents were accordingly served with the court order and notices of eviction by the Sheriff on 20 February 2023. Despite being served with the same, the respondents remained in unlawful occupation of the farm. It took the applicants a considerable period to evict the respondents as the Sheriff required police escort to carry out the eviction.

On 16 May 2023 the Sheriff partially evicted the respondents as they left behind some of their farming equipment and implements. Subsequently, on 30 May 2023 the Sheriff managed to completely evict the respondents and all those who claimed occupation through them but had unlawfully returned to the farm. The applicants averred that the respondents, in open defiance of the court order and in the presence of the Sheriff, unlawfully returned to the farm on the same day of the eviction. Whilst engaging the Sheriff to conduct another eviction, the applicants received a letter from the Ministry of Lands, Agriculture, Water, Fisheries and Rural Resettlement (hereinafter referred to as the Ministry of Lands) advising that the farm was to be repossessed for public purposes as the applicants were allegedly not fully utilising the farm for agricultural purposes.

The applicants further averred that they engaged the Minister on the matter to prove that the farm was one of the most productive farms in the district. On 24 June 2024, the applicants received communication from the Minister advising them that the farm was no longer going to be repossessed as he was satisfied by the level of their production. The applicants averred that during this period, the respondents together with their families remained in occupation of the farm in full defiance of the court order. The applicants initially filed an application for contempt under HC 5018/24 but withdrew it after realising that it had been erroneously filed as a court application instead of a chamber application.

The applicants further averred that the respondents had wilfully refused to comply with the court order hence the approach to the court for an order for their committal to prison. The prison sentence would be suspended on condition that the respondents and all those claiming occupation through them vacated the farm upon service of the court order should it be granted.

The applicants also sought an order of costs on the higher scale because of the respondents' conduct of openly defying a court order by resisting their eviction from the farm.

The application was opposed. The main opposing affidavit was filed by the first respondent, with the second respondent deposing to a supporting affidavit in which he associated himself with the averments of the first respondent.

The first respondent raised two preliminary points in his opposing affidavit. The first was that the costs awarded to the respondents in the previous suit between the same parties were still outstanding. The first respondent averred that the applicants had previously instituted proceedings against the respondents under HC 5018/24 and withdrew the matter with a tender of costs, but the tendered costs had not been paid. The other preliminary point was that there was a material non-joinder of the Minister of Lands, Agriculture, Water, Fisheries and Rural Resettlement. (the Minister). The first respondent argued that the Minister was a key player as the dispute involved land which fell under his jurisdiction and administration, hence the need to cite him as a party.

On the merits, the first respondent averred that the court ought to note that the respondents were also holders of permits that preceded the lease held by the applicants. They were therefore entitled to remain in possession of the farm. The first respondent averred that he had long vacated the farm. He further averred that he had filed an application for condonation for late noting of an Appeal and Extension of time within which to file an appeal to the Supreme Court under SC 674/24. The matter was struck off the roll for being defective. He had since filed a fresh application to challenge the eviction order.

The first respondent further averred that the court order and the notice of removal were indeed served on them sometime in February 2023 and they had since vacated the farm. The respondents averred that upon being served with the court order and the notice of removal, they had engaged officials of the Ministry and their legal practitioners. It was agreed that the issue must be resolved amicably. Following the engagements, the respondents believed that the court order was not going to be executed.

The first respondent also averred that the Ministry of Lands had made its position clear that it would rectify the error of the double allocation, and it was for that reason that the Minister had written to the applicants communicating his intention to withdraw their lease. The first respondent also averred that the Sheriff indeed removed them from the farm, but he remained in occupation of the farm to protect some of his property that had remained behind.

The first respondent denied that they returned to the farm in the presence of the Sheriff. He averred that they only camped outside the farm and the argument that they trooped back to the farm was unsupported and ill conceived. The first respondent also averred that it was on the strength of the advice received from the Ministry that the applicants' lease would be withdrawn, that made them to return to the farm.

The first respondent averred that it was only on 13 November 2024 that they were served with the application for contempt, although they had not been confronted following their repossession of the farm. The respondents denied that they were in contempt of court, as they had full respect for the law.

The first respondent also argued that the present application failed to meet the requirements of contempt of court to the extent that the respondents had managed to successfully rebut the presumption of wilfulness and *mala fides* that operated against them. In any event they were under a genuine impression that they were acting lawfully since the cancellation of the applicants' lease meant that the said order was no longer executable. The court was urged to dismiss the application with costs.

Submissions and analysis

On the day of hearing, parties requested to see me in chambers for a brief case management. Mr *Sengwayo*, for the respondents advised the court that he wanted the matter removed from the roll because the respondents had filed an application for the joinder of the Minister of Lands to the current proceedings. Mr *Makururu* for the applicants advised the court that the request for the removal of the matter from the roll would be opposed as it was simply a delaying tactic.

I enquired from the Mr *Sengwayo* if the respondents were still in occupation of the farm since the impression created in their opposition was that of a denial of the alleged contempt on the basis that they had vacated the farm. Mr *Sengwayo* was not sure of the correct position. I briefly adjourned the matter to allow the parties to discuss the matter further hoping that they would reach some kind of settlement.

When the meeting resumed, it was clear that the parties were poles apart and a settlement was out of reach. I directed that the parties proceed to court to motivate their respective positions on the request for the removal of the matter from the roll, and the main matter.

In advancing his application for the removal of the matter from the roll, Mr *Sengwayo* cited the case of *Grain Marketing Board* v *Muchero* SC 59/07, where it was held that once an ancillary application was placed before the court, then the court had to deal with the ancillary application first before hearing the main matter. It was averred that there was a pending application for the joinder of the Minister to the current proceedings and the present proceedings had to be stayed pending the determination of that matter.

Mr *Makururu* averred that the request for the removal of the matter from the roll was merely a delaying tactic employed by the respondents. He cited the case of *Grandwell Holdings (Private) Limited* v *Minister of Mines and Mining Development and 4 Ors* HH 286/23, which dealt with the *dictum* in the *Grain Marketing Board* v *Muchero SC 59/07.* In that case, the court observed that a request for the removal of the matter from the roll is essentially a request for a postponement of the matter. The request for the removal of the matter is not there for the asking. It is an issue entirely within the court's discretion.

Mr *Makururu* further submitted that the requirements for seeking a postponement were whether there was good cause for the postponement and that the postponement was not intended to delay proceedings. He averred that it was clear from para 14:11 of the respondents' opposing affidavit that the respondents were still in occupation of the farm. The respondents had also admitted that they actually returned to the farm after their eviction. Mr *Makururu* also submitted that the application for joinder was made at the eleventh hour, yet the respondents had raised the failure to cite the Minister of Lands as a preliminary point in their opposing affidavit. The application for joinder had also not been placed before the court.

The court dismissed the application for the removal of the matter from the roll outright as it was devoid of merit. The reason given for that request was that there was a pending application for the joinder of the Minister of Lands to the present proceedings. The present application was motivated by the respondents' refusal to comply with an order of this court. The Minister of Lands was not a party to those proceedings.

The respondents could not seek the joinder of the Minister to proceedings that had been concluded save for the eviction of the respondents. The proceedings were at their tail end. The question was simply whether the respondents had refused to comply with an order of the court or not. The merits of the matter were not an issue. The merits were considered when the court granted the order which precipitated the present proceedings. The respondents could not therefore seek the joinder of the Minister in contempt of court proceedings.

Further, the respondents had raised as a preliminary point, the fact that the non joinder of the Minister of Lands as an interested party was fatal to the present proceedings. The respondents could not therefore seek the removal of the matter from the roll pending the joinder of the Minister of Lands to the present proceedings, when the question of the non-joinder of the Minister of Lands was an issue in this matter.

Whichever way one looks at the issue, the request for the removal of the matter from the roll because there was a pending application for the joinder of the Minster of Lands was clearly without merit. The Minister could not be joined to proceedings that had been concluded save for the purposes of the enforcement of the court order.

As regards the merits of the matter, Mr *Sengwayo* chose to stand by the papers already filed of record leaving the court to decide on the papers. Mr *Sengwayo* also abandoned the preliminary points raised in the respondents' opposing affidavit.

Mr *Makururu* persisted with the applicants' arguments as per their papers filed of record. Counsel insisted that the respondents were in wilful contempt of court as they had confirmed in para 14.7 of their opposing affidavit that they were in occupation of the farm.

Before a person is held to be in contempt of court, the court has to be satisfied that there is a court order which is extant, that the order has been served on the individuals concerned and that the individuals in question are aware of what the court order requires them to do or not do, that being aware of what the order dictates, the individuals concerned deliberately and consciously disobeyed the order. Further the court must be satisfied that not only was the order not complied with but also that non-compliance on the part of the defaulting party was wilful and *mala fide.* See *Mukambirwa and Ors* v *The Gospel of God Church International* SC 8/14.

From the papers before the court, it was clear that the respondents were made aware of the court order in HC4302/22 and were also aware that the court order directed them to vacate the farm. The Sheriff successfully evicted them from the farm on 30 May 2023. The respondents, however denied that they disobeyed or neglected to comply with the court order. They stated that they complied with the court order and only returned to the farm after they were advised by officials from the Ministry of Lands to do so. In para 14.10 of the first respondent's opposing affidavit, it is stated that:

> "We were advised that we could go back to the plot and that was when we went back to the plot. Government Officials even came and carried our property for us and helped us move back onto the land."

While the respondents contended that they complied with the court order, the sheriff made the following comments in his return of service:

> "Upon leaving the farm we noticed the defendants loading the removed property and driving towards the direction of the farm."

The respondents failed to give satisfactory reasons for returning to the farm after having been evicted from the same twice. They stated that their return to the farm was at the direction of the Minister, yet nothing was placed before the court to confirm the Minister's position. The respondents' attempt to drag the Minister and other Government officials into their mess was ill-advised. The respondents sought to persuade the court that their return to the farm was strengthened by the Minister's assurance that he was going to repossess the farm from the applicants. This is contrary to the Minister's position confirmed by the letter he wrote to the applicants dated 24 June 2024 wherein he stated the following;

> "…I have considered objections which you have raised in your letter dated 27 December 2023. Please be advised that I have taken note of the High Court Order, which I intend to obey and effect. On the other hand, I am fully satisfied by the level of production going on at your farm and it is my position that productive farms must not be downsized.
> Therefore, it is against this background that I am no longer proceeding with cancellation of your 99-year lease."

It is apparent in the circumstances that the respondents' return to the farm was never sanctioned by the Minister as alleged. At any rate, a court order cannot be set aside based on an instruction from the Minister. A court order must be complied with unless it is set aside by an order of the same court that granted it. The respondents were therefore required to deal with the order that led to their eviction instead of taking matters into their own hands. The respondents have still not complied with the said order despite being properly served and evicted from the farm by the sheriff. Instead, they chose to openly defy the court order by returning to the farm following their eviction by the sheriff. The court finds the respondents conduct wilful and malicious. Their opposition to the application is clearly a dilatory tactic aimed at postponing the day of reckoning.

Costs

Counsel for the applicants prayed for an order of costs on the punitive scale. That request was properly made because the way the respondents conducted themselves clearly justified an order of costs on the scale sought. Court orders must be complied with unless they are set aside or compliance is suspended by an order of the court or an appeal against that order. The only way that this court can express its displeasure with litigants who wilfully disobey its

orders is through an adverse award of costs on the punitive scale. The present application was necessitated by the respondents' wilful disdain of an extant order of this court.

It was for the foregoing reasons that the court granted the order above.

MUSITHU J……

Makururu and Partners, applicants' legal practitioners.
Trust Law Chambers, respondents' legal practitioners.